

"To ensure women's safety, we need a correction of mal-administration and the development of a culture within the criminal justice system that fosters cooperation, collaboration and mutual learning"

— **KIRAN BEDI** India's first woman IPS officer and ex-Lieutenant Governor, Puducherry



"Almost 12 years since Nirbhaya, nothing has changed because all we do is sloganeering and campaigns. What are we doing at a systemic level? When there's no real intent, nothing is going to get done"

— **GUL PANAG**
Aviatrix, actor and producer



"While we have a strong legal framework [to address harassment], the challenges remain, particularly in consistent enforcement at the local level and overcoming deep-seated societal attitudes"

— **RUPALI CHAKANKAR** Chairperson, Maharashtra State Commission for Women



"It's crucial to take all complaints of sexual harassment seriously. Down-playing 'eve-teasing', stalking, groping, etc. discourages complainants from coming forward and emboldens perpetrators"

— **VEENA GOPALAKRISHNAN**
Partner, Employment Practice, Trilegal

problem, most experts agree, lies in the nature of compliance. The PoSH and labour laws leave it to the establishments to implement these laws, in the absence of anyone to keep track. The labour laws, says noted women's rights activist Kavita Krishnan, need to be modified so that the monitoring of their implementation moves from self-compliance to entrusting it to either a relevant government agency or inviting independent rights groups to carry out certified audits in every district.

Corrine Kumar, founder of Bengaluru-based NGO Vimochana, which works on healing women survivors of abuse, echoes Krishnan's concerns. The MSMEs, which employ the largest number of women, have no mandatory compliance mechanism, only digital self-compliance, she says. "Whatever independent bodies were empowered to physically monitor compliance of labour laws have been dismantled in the past few years in favour of e-compliance." As for the PoSH Act, even more than a decade after its implementation, 59 per cent of the 200 companies surveyed by Udaiti Foundation and the Centre for Economic and Data Analysis did not have an IC. Equally concerning was the 67 per cent year-on-year increase in the pendency of complaint resolutions, which has risen from 260 in FY23 to 435 in FY24. By law, complaints should be inquired and resolved within 90 days of being filed. The wrestlers protesting for an investigation into sexual harassment charges against Wrestling Federation of India (WFI) head Brij Bhushan Sharan Singh last year had to file an FIR due to the absence of an IC—a critical issue identified by the M.C. Mary Kom-headed panel investigating the allegations.

Even where there is an IC, it is often not independent and may prioritise "protecting" the company's image over the rights of the complainant, particularly when a junior employee files a complaint against a high-performing senior. "Often, the vulnerability of the woman is not protected, leading her to quit," says Nandita Shah of the women's resource centre Akshara Foundation, which works on preventing gender-based violence. Meanwhile, deeply-entrenched patriarchal norms in society, victim-shaming, gender stereotyping and a sense of male entitlement over women's bodies persist. "Women often choose to maintain a low profile and endure harassment silently, fearing they will be labelled as troublemakers," says D'Mello. There is also the fear that their claims won't be believed, as harassment is often difficult to prove, and women